

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

April 16, 2026

8:30 a.m./1:30 p.m.

22. MICHAEL WOODARD V. AMBER ASHLEY

25FL0885

Respondent filed a Request for Order (RFO) on March 6, 2026, requesting child and temporary guideline spousal support, as well as Family Code section 2030 attorney's fees. Respondent concurrently filed an Income and Expense Declaration. Petitioner was served electronically on March 10, 2026.

Petitioner filed a Responsive Declaration on April 3, 2026, along with an Income and Expense Declaration. Petitioner also filed a Memorandum of Points and Authorities. Respondent was served electronically on April 3, 2026. Petitioner submits on the request for guideline child and temporary spousal support. Petitioner objects to Family Code section 2030 attorney's fees. Petitioner asserts Respondent's request for Family Code section 2030 attorney's fees is defective due to Respondent not including the requisite information and that the fees are unreasonable.

Respondent filed a Reply on April 9, 2026. It was electronically served the same day. Respondent disputes Petitioner's calculation of income. Further Respondent addresses the issues raised by Petitioner regarding the attorney's fees request and the request to split an escrow disbursement check.

The court has read and considered the filings as outlined above. The court adopts the proposed X-Spouse included as Exhibit 1 in Petitioner's Responsive Declaration, including the bonus/overtime table.

The court orders Petitioner to pay Respondent \$459 per month as and for guideline child support. This order is effective March 15, 2026, with payments due on the 15th of each month until further order of the court or termination by operation of law.

The court finds this order results in an arrears balance of \$918 for the months of March and April inclusive. The court orders Petitioner to pay Respondent \$229.50 as and for arrears on May 1, 2026, with future payments due on the 1st of each month until paid in full (approximately four months). If there are any missed or late payments, the full amount is due and owing along with legal interest.

In addition to the foregoing monthly support payments, the parties are ordered to equally share in any uninsured medical care costs for the children, as well as childcare costs when such costs are incurred as a result of employment or necessary education for employment. The parties are ordered to follow the procedures set forth in the FL-192.

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

April 16, 2026

8:30 a.m./1:30 p.m.

The court finds temporary guideline spousal support to be \$511 per the Alameda formula, payable from Petitioner to Respondent. The court orders Petitioner to pay Respondent \$511 per month as and for temporary guideline spousal support effective March 15, 2026, with payments due on the 15th of each month until further order of the court or termination by operation of law.

The court finds this order results in an arrears balance of \$1,022 for the months of March and April inclusive. The court orders Petitioner to pay Respondent \$255.50 as and for arrears effective May 1, 2026, with further payments due on the 1st of each month until paid in full (approximately four months). If there is any missed or late payment, the full amount is due and owing with legal interest.

The court denies Petitioner's request to split the escrow disbursement. The court finds Respondent utilized the disbursement to community expenses.

Turning to Respondent's request for Family Code Section 2030 attorney's fees. The public policy of Family Code section 2030 is to provide "at the outset of litigation, consistent with the financial circumstances of the parties, parity between spouses in their ability to obtain effective legal representation." *In re Marriage of Keech*, 75 Cal. App. 4th 860, 866 (1999). This ensures each party has access to legal representation to preserve each party's rights. In the face of a request for attorney's fees and costs, the court is to make findings on "whether there is a disparity in access to funds to retain counsel, and whether one party is able to pay for legal representation of both parties." Fam. Code § 2030(a)(2).

Family Code section 2032 works in tandem with Section 2030 to ensure that any award of costs and fees is just and reasonable. Fam. Code § 2032. "In determining what is just and reasonable under the relative circumstances, the court shall take into consideration the need for the award to enable each party, to the extent practical, to have sufficient financial resources to present the party's case adequately." *Id.* at (b). Financial resources are only one factor to be considered though. *Id.* In addition to the parties' financial resources, the court may consider the parties' trial tactics. *In Re Marriage of Falcone & Fyke*, 203 Cal. App. 4th 964; 975 (2012).

The court finds Respondent has set forth the bare minimum information required for the court to ascertain whether an award of attorney's fees would be appropriate. The court further finds Respondent's fees are not unreasonable. However, the court finds after the payment of support, Petitioner does not have the ability to pay for both his attorney's fees and Petitioner's. Further, the court finds Petitioner has sufficient resources available,

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

April 16, 2026

8:30 a.m./1:30 p.m.

namely the cash funds as set forth in section 11 of her Income and Expense Declaration, to pay for counsel. As such, the request for attorney's fees pursuant to Family Code section 2030 is denied.

All prior orders not in conflict with these orders remain in full force and effect. Respondent shall prepare and file the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #22: THE COURT ADOPTS THE PROPOSED X-SPOUSE INCLUDED AS EXHIBIT 1 IN PETITIONER'S RESPONSIVE DECLARATION, INCLUDING THE BONUS/OVERTIME TABLE.

THE COURT ORDERS PETITIONER TO PAY RESPONDENT \$459 PER MONTH AS AND FOR GUIDELINE CHILD SUPPORT. THIS ORDER IS EFFECTIVE MARCH 15, 2026, WITH PAYMENTS DUE ON THE 15TH OF EACH MONTH UNTIL FURTHER ORDER OF THE COURT OR TERMINATION BY OPERATION OF LAW.

THE COURT FINDS THIS ORDER RESULTS IN AN ARREARS BALANCE OF \$918 FOR THE MONTHS OF MARCH AND APRIL INCLUSIVE. THE COURT ORDERS PETITIONER TO PAY RESPONDENT \$229.50 AS AND FOR ARREARS ON MAY 1, 2026, WITH FUTURE PAYMENTS DUE ON THE 1ST OF EACH MONTH UNTIL PAID IN FULL (APPROXIMATELY FOUR MONTHS). IF THERE IS ANY MISSED OR LATE PAYMENT, THE FULL AMOUNT IS DUE AND OWING ALONG WITH LEGAL INTEREST.

IN ADDITION TO THE FOREGOING MONTHLY SUPPORT PAYMENTS, THE PARTIES ARE ORDERED TO EQUALLY SHARE IN ANY UNINSURED MEDICAL CARE COSTS FOR THE CHILDREN, AS WELL AS CHILDCARE COSTS WHEN SUCH COSTS ARE INCURRED AS A RESULT OF EMPLOYMENT OR NECESSARY EDUCATION FOR EMPLOYMENT. THE PARTIES ARE ORDERED TO FOLLOW THE PROCEDURES SET FORTH IN THE FL-192.

THE COURT FINDS TEMPORARY GUIDELINE SPOUSAL SUPPORT TO BE \$511 PER THE ALAMEDA FORMULA, PAYABLE FROM PETITIONER TO RESPONDENT. THE COURT ORDERS PETITIONER TO PAY RESPONDENT \$511 PER MONTH AS AND FOR TEMPORARY GUIDELINE SPOUSAL SUPPORT EFFECTIVE MARCH 15, 2026, WITH PAYMENTS DUE ON THE 15TH OF EACH MONTH UNTIL FURTHER ORDER OF THE COURT OR TERMINATION BY OPERATION OF LAW.

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

April 16, 2026

8:30 a.m./1:30 p.m.

THE COURT FINDS THIS ORDER RESULTS IN AN ARREARS BALANCE OF \$1,022 FOR THE MONTHS OF MARCH AND APRIL INCLUSIVE. THE COURT ORDERS PETITIONER TO PAY RESPONDENT \$255.50 AS AND FOR ARREARS EFFECTIVE MAY 1, 2026, WITH FURTHER PAYMENTS DUE ON THE 1ST OF EACH MONTH UNTIL PAID IN FULL (APPROXIMATELY FOUR MONTHS). IF THERE IS ANY MISSED OR LATE PAYMENT, THE FULL AMOUNT IS DUE AND OWING WITH LEGAL INTEREST.

THE COURT DENIES PETITIONER'S REQUEST TO SPLIT THE ESCROW DISBURSEMENT. THE COURT FINDS RESPONDENT UTILIZED THE DISBURSEMENT TO COMMUNITY EXPENSES.

THE COURT FINDS RESPONDENT HAS SET FORTH THE BARE MINIMUM INFORMATION REQUIRED FOR THE COURT TO ASCERTAIN WHETHER AN AWARD OF ATTORNEY'S FEES WOULD BE APPROPRIATE. THE COURT FURTHER FINDS RESPONDENT'S FEES ARE NOT UNREASONABLE. HOWEVER, THE COURT FINDS AFTER THE PAYMENT OF SUPPORT, PETITIONER DOES NOT HAVE THE ABILITY TO PAY FOR BOTH HIS ATTORNEY'S FEES AND PETITIONER'S. FURTHER, THE COURT FINDS PETITIONER HAS SUFFICIENT RESOURCES AVAILABLE, NAMELY THE CASH FUNDS AS SET FORTH IN SECTION 11 OF HER INCOME AND EXPENSE DECLARATION, TO PAY FOR COUNSEL. AS SUCH, THE REQUEST FOR ATTORNEY'S FEES PURSUANT TO FAMILY CODE SECTION 2030 IS DENIED.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT. RESPONDENT SHALL PREPARE AND FILE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.